

What Other Places *Require*

Data center ordinance standards, quoted from the codes that adopted them

The American Planning Association wrote in 2021: “relatively few local zoning codes define and regulate data centers”⁶ Below is what some places that have written rules require, quoted from their own ordinances and codes.

Adopted standards, side by side

Community	Where and how far	Noise	Generator testing	Water
Linn County, Iowa	1,000 feet (measured from the closest outer wall of the closest building on the data center property) to the closest outer wall of a place of public assembly and to the property line of any residentially zoned property ¹	The average hourly noise level shall not exceed fifty-five (55) dBA or sixty-five (65) dBC ¹	Equipment testing, maintenance activities, and construction activities that generate elevated noise, including generator testing, shall be limited to the hours of 8:00 a.m. to 6:00 p.m., Monday through Friday ¹	Approval for large-scale data center projects shall be conditioned on the applicant demonstrating there is sufficient reliable water supply ¹
San Angelo, Texas	Minimum front building setback: 300 feet to nearest property line of residentially zoned property ² New data centers shall be permitted as a principal use by Conditional Use (CU) only ²	limited to a maximum sound level of 55 dBA during the daytime and 55 dBA at nighttime ²	Generator testing conducted between 9:00 a.m. until 4:00 p.m. ²	
Chandler, Arizona	Data Centers are not permitted to operate in the City of Chandler unless explicitly approved as part of a Planned Area Development zoning district. ³	sufficient to prevent the sound levels emanating from the Data Center ... from exceeding the ambient noise levels that were observed in the baseline study ³	backup generators may operate between the hours of 9:00 am and 5:00 pm, Monday through Friday, excluding holidays ³	
Kansas City, Missouri	Data centers may not exceed more than 50% of the ground floor gross floor area of any building with street frontage. ⁴	Large format uses shall not produce odors, dust, vibration, noise, spillover light, or other external impacts that are detectable beyond the property lines ⁴		
Frederick County, Maryland	directing Critical Digital Infrastructure Facilities and Critical Digital Infrastructure Electric Substations to industrial lands in proximity to data conveyance infrastructure ⁵ shall include less than 1% of the total land area of the county ⁵			

What the national guides suggest

National Association of Counties

"Typical building setback requirements from property lines range from 200 feet to up to 500 feet from a residential property or zoning district."⁷ "setting noise limits, often 65 decibels at the property line and 55 decibels in quieter or residential areas"⁷ "water balance studies, discharge water quality standards and long-term monitoring programs with defined curtailment plan triggers"⁷

Urban Land Institute model ordinance

"offering a balanced model zoning ordinance for data center development that authorities having jurisdiction (AHJs) can adapt straight from the page"⁸ "we believe that data centers are not appropriate in residential districts"⁸ "be located at least 200 feet (61 m) from the residential or noise-sensitive use"⁸

NACo: "their operations and infrastructure requirements more closely match those of a factory"⁷

Before you write your own

1. **Define the use.** APA: "By making data centers a distinct use, cities ensure clear zoning requirements are well defined"⁶
2. **Pick the path.** By right, conditional use, planned development only, or an overlay district.
3. **Set numbers you can measure.** Distance, decibels at the property line, testing hours, and proof of water supply.
4. **Decide what zoning can't do.** FAS: "a CBA cannot fix a zoning gap and a zoning ordinance cannot capture specific project commitments like a CBA can"⁹

The Nash Group is the third party in the middle. We don't argue for or against a project, our fee never depends on the outcome, and we never work both sides of the same one. More sources: nashdg.com/national-data-center-resource-library. To talk: tnash@thenashdevelopmentgroup.com, (816) 213-4461.

Sources

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